

THE COMPANIES ACT 2019 (ACT 992)

**THE CONSTITUTION OF AKUAPEM RURAL BANK PLC
COMPANY NUMBER: CS29772017**

(A PUBLIC LIMITED LIABILITY COMPANY ("PLC") BY SHARE)

THE COMPANIES ACT, 2019 (ACT 992)

AMENDED CONSTITUTION OF PUBLIC COMPANY LIMITED BY SHARES

1. The name of the company is **AKUAPEM RURAL BANK PLC** “the Company”).
2. The Company is to be a Public Limited Liability company.
3. The nature of the business which the Company is authorized to carry on is: -BANKING
4. Pursuant to amended of the Companies Act, 2019 (Act 992) the company has for the furtherance of its authorized business all the powers of a natural person of full capacity except in so far as such powers are expressly excluded by these Regulations.
5.
 - (1) **The First directors of the Company are:-**
EMMANUEL ASIEDU - MANTE
GLORIA NIKOI (MRS)
EMMANUEL MANUKURE GYASI
JOHN KUMI
 - (2) The power of the board of directors are limited in accordance with section 202 of the Companies Act.
6. The Liability of the members of the Company is limited.
7. The Company is to be registered with **5,000,000,000** Shares of no par Value. No party paid shares will be issued.
8. The Company is a private company and accordingly.
 - (a) the right to transfer shares is restricted in a manner following, that is to say, the directors may, in their absolute discretion and without assigning any reason therefore decline to register any transfer of any share;
 - (b) the number of members and debenture holders of the company, exclusive of person who are bone fide in the employment of the company and of persons who having been formerly bona fide in the employment of the company were while in sure employment and have continue after the determination of such employment to be members or debenture holders of the company, is limited to fifty.
 - (c) the company is prohibited from making any invitation to the public to deposit money for fixed period or payable at call, whether bearing or not bearing interest.

SHARES AND VARIATION OF RIGHTS

9. The Company may, by special resolution altering these Regulations,
 - (a) increase the number of its share by creating new shares;
 - (b) reduce the number of its shares by cancelling shares which has not been taken or agreed to be taken by any person, or by consolidating its existing shares, whether issued or not, into smaller number of shares;
 - (c) Provide for different classes of shares by attaching to certain number of the shares referred, deferred or other special rights or restrictions whether in regard to dividend, voting, repayment, otherwise; Provided that the voting right of equity share shall comply with the provision of Sections 31 and 50 of the Act and the voting rights of preference share shall Comply with the provisions of section 31 and 49 of the Act;
 - (d) in accordance with section 59 of the Act create preference shares which are , or at the option or the company are liable, to be redeemed on such terms and in such manner as may be provided, but subject to compliance with the provisions of sections 60 to 63 of the Act.
10.
 - (1) The Company shall not issue any new or unissued share for cash unless the same are offered being in the first instance to all the Shareholders or to all shareholders of the class or classes issued in proportion as nearly as may to be their existing holdings.
 - (2) The offer to the existing shareholders shall be by notice specifying the number of shares to which the shareholder is entitled to be subscribed and limited a time, not being less than twenty-eight days after the date of service of the notice after the expiration of which the offer, if not accepted, will be deemed to be declined.
 - (3) After the expiration of such time, on receipt of an intimation from the shareholder that he declines to accept the shares offered, the Board of Directors may, subject to the term of any resolution of the company and to the provisions of section 202 of the Act, dispose off the same at a price not less than that specified in the offer in such manner as they most beneficial to the Company.
 - (4) This regulation shall not be alterable except with the unanimous consent of all the members of the company.
11. If at any time the shares are divided into different classes, the rights attached to any class may be varied with the written consent of the holders of at least three fourths of the issued shares of that class or the sanction of special resolution of the holders of the shares of that class.
12. Subject to compliance with the provision of section 60 to 63 of the Companies Act, the company may exercise the powers conferred by section 59 of the Act

To.

- a. purchase its own shares;
 - b. acquire its own shares by a voluntary transfer to it or nominee for it;
 - c. forfeit in manner hereinafter appearing any shares with an unpaid liability for nonpayment of calls other sums payable in respect thereof.
13. The company may pay commission or brokerage to any person in consideration of his subscribing or agreeing to subscribe or agreeing to procure subscriptions for any shares in the company provided that the payment does not exceed then per centum of the price at which the shares are issued.
14. Shares certificates shall be issued is accordance with section 53 of the Act.

CALLS ON SHARES

15. (1) Where shares are issued upon the terms that any part of the price payable therefore is not payable at a fixed time the Board of Directors may from time to time make calls upon the shareholders in respect of any moneys unpaid on their shares, provided that no call shall be payable less than twenty-eight day from the date fixed for the payment of the last preceding call, and each shareholder shall subject to receiving not less that fourteen days' notice specifying the time or times and place of payment pay to the company at the time or times and place so specified the amount called upon his shares;

(2) A call may be revoked or postponed as the directors may determine.
16. A call shall be deemed to have been made at the time when the resolution of the directors authorizing the call was passed and may be required to be paid by installments.
17. The joint holders of a share shall be jointly and severally liable to pay all calls in respect thereof.
18. If a sum called in respect of a share is not paid before or on the day appointed for payment, the person from whom the sum is due shall pay interest thereon from the date appointed for payment to the time of actual payment at such rate not exceeding five per centum per annum as the Board of Directors be at liberty to waive payment of such interest wholly or in part.
19. Any sum which by the terms of issue of a share becomes payable on application therefore or an allotment, or any fixed date shall for the purposes of these Regulations be deemed to be a call duly made and payable on the date on which by terms of issue the same becomes payable, and in the case of non-payment all the relevant provisions of these Regulations as to payment of interest and expenses, forfeiture, sale or otherwise shall apply as if such sum had become payable by virtue of a call duly made and notified.
20. As between shares of the same class the company shall not differentiate between the holders as to the amount of calls to be paid or the time of payment.

FORFEITURE OF SHARES

21. If a shareholder fails to pay any call or installment of a call, including any sum deemed to be a call under regulation 19 hereof, the Board of Directors may at any time thereafter during such time as any part of the call or installment remains unpaid, serve a notice on him requiring payment of so much of the call or installment as is unpaid, together with any interest which have accrued.
22. The notice shall name a further day not earlier than the expiration of fourteen days from the date of service of the notice on or before which the payment required by the notice is to be made, and shall state that in the event of Non-payment at or before the time appointed the shares in respect of which the call was made will be liable to be forfeited.
23. If the requirements of such notice are not complied with, any share in respect of which the notice has been given may, at any time thereafter, before the payment required by the notice has been made, be forfeited by a resolution of the Directors to that effect.
24. a forfeited share may either be cancelled by alteration or may be retained as a treasury share until sold or otherwise disposed off on such terms and in such manner as the Board of Directors may deem fit.
25. A person whose share has been forfeited shall cease to be a member in respect of the forfeited share and shall be bound to surrender to the company for cancellation of the share certificate or certificate in respect of the shares so forfeited but shall, notwithstanding, remain liable to pay to the company in respect of the shares, but his liability shall cease if and when the company shall have received payment in full of such moneys in respect of the shares.
26. A statutory declaration in writing by the declarant to the Secretary of the Company and that a share in the company has been duly forfeited on the date stated in the declaration, shall be conclusive evidence of the facts therein stated as against all persons claiming to be entitled to the share.

LIEN

27. (1) The company shall have a first and paramount lien on all shares issued with an unpaid liability for all moneys, whether presently payable or not, called or payable at a fixed time in respect of that share.

(2) The company's lien shall extend to all dividends payable thereon.
28. If any sum in respect of which the company has a lien is presently payable the Board of Directors, after serving the notice required by regulations 22 and 23 hereof, may, at any time before the payment required by such notice has been made, sell any share on which the company has such lien instead or forfeiting it in accordance with regulation 24 hereof.

29. (1) To give effect to any such sale the Board of Directors and the Company Secretary may authorize some persons to transfer the shares sold to the purchaser thereof.
- (2) The purchaser shall be registered as the holder of the share comprised in such transfer and he shall not be bound to see to the application of the purchase money nor shall the title to his shares be affected by any irregularity or invalidity in the proceeding in reference to the sale.
30. The proceeds of such sale shall be received by the company and applied in payment of such part of the amount in respect of which the lien exists as is presently payable, and the residue, if any, shall, subject to a like lien for sums not presently payable as existed upon the shares before the sale, be paid to the person entitled to the share at the date of the sale but the company shall not be bound to make payment

TRANSFER AND TRANSMISSION OF SHARES

31. Subject to regulation 8 (a) hereof share shall be transferable and transfers shall be registered in the manner provided by section 95 of the Act.
32. In the event of the death of any shareholder or in the event of ownership of any share devolving upon any person by reason of his being the legal personal representation, receiver, or trustee in bankruptcy of the holders, or by operation of law, the provisions of section 99 of the Act shall apply.
33. Shares purchased shall **NOT** be redeemable unless by transfer as per regulations 31 and 32
34. The Company shall not be responsible for the sale of individual shares to third parties; but will register the shares transferred as provided by section 95 of the Act.

DIVIDENDS

35. The company may, by ordinary resolution, declare dividends in respect of any year nor other period but no dividend shall exceed the amount recommended by the Board of Directors.
36. No dividend shall be paid unless;
- a. The Company will, after such payment, be able to pay its debts as they fall due;
 - b. The amount of such payment does not exceed the amount of the company's income surplus immediately prior to the making of such payment.
37. The Board of Directors may, before recommending any dividend, set aside out of the profits or income a disputed or contingent liability, or as a depreciation or replacement provision and may carry forward any profits or income surplus which they think prudent to distribute.
38. All dividends shall be declared and paid as a fixed sum per share and not as a proportion of the amount paid in respect of a share.

39. (1) Any dividend payable in cash may be paid by cheque or warrant sent by post directed to the registered address of the shareholder or, in the case of joint holders, to the registered address of that on who is first named on the register of members, or to such person and to such address as the holder or joint holder may in writing direct. Every such cheque or warrant shall be made payable to the order or the person to whom it is sent.
- (2) Any one of two or more joint holders may give effectual receipts for any dividends
- (3) Every dividend payment shall be accompanied by a statement showing the gross amount of the dividend and any tax deducted or deemed to be deducted there from.
40. No dividend shall bear interest against the company.
41. Dividend payment shall not exceed 40 percent of the total profit of the Company.
42. All shares purchased after the closure of the Companies register shall not be entitled to dividend.

CAPITALISATION ISSUES AND NON-CASH

43. The company, upon the recommendation of the Board of Directors may exercise the powers conferred by section 77 of the Act.
- (a) To make capitalization issues of shares in accordance with sub-section (1) of section 77
- (b) To resolve, in accordance with sub-section (4) of section 77, that resolution of the company lawfully declaring a dividend may on the recommendation of the Directors, direct payment wholly or partly by distribution of securities for money, or of fully paid, but not partly paid, shares or debentures of any other body corporate, or of fully paid, shares of any other body corporate, or of the company of a nominal amount equal to the amount so directed to be paid.

ACCOUNTS AND AUDIT

44. The Board of Directors shall cause proper books of account to be kept and a Profit and Loss Account and Balance sheet to be prepared, audited and circulated in accordance with section 127 to 133 of the Act.
45. Auditors, qualified in accordance with section 138 of the Companies Act shall be appointed and their duties regulated in accordance with section 142 and 143 of the Companies Act.

GENERAL MEETINGS AND RESOLUTION

46. The powers of the members in general meeting shall be as stated in section 144 of the Companies Act.

47. Annual General Meeting shall be held in accordance with section 157 of the Act.
48. Extraordinary General Meetings may be convened by the Board of Directors whenever they deem fit in accordance with section 158 of the Companies Act and shall be convened by the Board Secretary on a requisition of members in accordance with section 299 of the Act.
49. (a) In accordance with section 160 of the Act any member entitled to attend and vote at a meeting the company shall be entitled to appoint another person, whether a member of the company or not, as his proxy to attend and vote instead of him and such proxy shall have the same rights as the member to speak at the meeting.

(b) An instrument appointing a proxy shall be in the form prescribed according to the Companies Act.
50. In accordance with section 177 of the Companies Act a resolution in writing signed by all the members for the time being entitled to attend and vote at general meetings, or being bodies corporate by their duly authorized representatives, and if the company has only one such member by that member shall be as valid and effective for all purposes, except as provided by such section 177, as if the same had been passed at a General Meeting of the Company duly convened and held, and if described as a special resolution shall be deemed to be a special with the meaning of the Companies Act.
51. Minutes of General Meeting shall be kept in accordance with section 166 of the Act.
52. If at any time the shares of the company are divided into different classes the foregoing regulations shall apply to a meeting of any class of members in like manner as they apply to General Meeting but so that the necessary quorum shall be set out according to the Companies Act.

DIRECTORS

53. The number of directors, shall not be less than five or more than seven, and shall be determined by ordinary resolution of the members in General Meetings and until so determined.
54. The appointment of Directors shall be regulated by section 172 and 175 of the Companies Act, the Board Charter and shall Conform to the Corporate Governance Directives.
55. The persons referred to in section 173 of the Act shall be competent to be appointed director of the company.
56. A director shall be a member of the company and hold shares.
57. The office of directors shall be vacated in accordance with section 181 of the Companies Act and any Director may appoint an alternate director in accordance with section 173 of Act.

- 58. An alternate director shall not be entitled to be remunerated otherwise than out of the remuneration of the directors appointing him.
- 59. At least one director of the company shall at time be present in Ghana.
- 60. The remuneration payable to any director in whatsoever capacity shall be determined or approved by the members in general meetings.
- 61. The proceeding of the directors shall be regulated by the Companies Act and the Board Charter. Directors may delegate any of their powers to committees of the directors in accordance with the Companies Act.

POWERS AND DUTIES OF DIRECTORS

- 62. (1) The business of the company shall be managed by the Management appointed by the Directors.

(2) The Board of Directors may exercise all such powers of the company, including the power to borrow money and to mortgage or charge its property and undertaking or any part thereof and, as are not by the Companies Act or these Regulation required to be exercised by the members in General Meetings.
- 63. In any transaction with the company or on its behalf and in the exercise of their powers the Directors shall observe the duties and obligations on them by the Companies Act and any other regulation pertaining to Banking.
- 64. Subject to compliance with section 207 of the Act, a director may enter into any contract with the company and such or any other contract of the company in which any director is in anyway interested shall not liable to be avoided nor shall any director be liable to account for any profit made thereof by reason of the director holding the office of Director or of the Judiciary relationship thereby established. However, the Director shall disclose his interest in the interest register provided by the Company Secretary.

CHIEF EXECUTIVE AND KEY MANAGEMENT PERSONS

- 65. The Board of Directors shall exercise the powers conferred by the Act to appoint persons on such terms as they may determine and, subject to the terms of any agreement entered into in any particular case, may revoke such appointment as per the Corporate Governance Directives and per the terms of their contract.
- 66. The Directors may entrust to and confer upon the Chief Executive Officer any of the powers exercisable by them but shall not confer such duties specifically provided for by the Act as duties of the Board Chair or Company Secretary, and subject to the terms of any agreement

entered into on any particular case, may from time-to-time revoke or vary all any of such powers.

67. The Board of Directors shall appoint all Key Management persons and shall be responsible for the determination of their remuneration and other benefits as pertaining to their exposure to risk.
68. The Board of Directors shall determine the Job description of all Key Management persons and shall be responsible for setting standards for all Management members to properly evaluate and monitor them.

COMPANY SECRETARY

69. The Company Secretary shall be appointed by the Board of Directors for such time, at such remuneration, and upon such conditions as they deem fit and as accepted by the Company Secretary, and any Secretary so appointed may be removed by them, subject however to his right to claim damages if removed in breach of contract.
70. A provision in the Act or these regulations requiring or authorizing a thing to be by or to directors shall be done on behalf of the Board of Directors by the Secretary shall be deemed to have been done by the Board of Directors.
71. The Board of Directors may appoint the Company Secretary as the Legal Officer of the Bank, if the Company Secretary is an Attorney.
72. The Company Secretary shall assist the Board of Directors to comply with the constitution of the Company.
73. The Company Secretary shall ensure that the Minutes of the meetings of the Shareholders and the Directors are properly recorded in the form required by the Company's Act.
74. The Company Secretary shall ensure that the Financial Statements of the Company are dispatched to every person entitled to the statements as required by this Act.

THE SEAL

75. The Company Secretary shall provide for the safe custody of the Seal which shall be used on behalf of the Board of Directors, and every instrument to which the seal shall be signed by a Director, and shall be countersigned by the Company Secretary or by a second Director when a Company Secretary is not available.

WINDING-UP

76. If the Company shall be wound up the liquidator may, with the sanction of a special resolution of Liquidation) Act, 1963 (Act 180), divide amongst the member the whole or any part of the

assets of the company, whether they shall consist of property of the same kind or not, and may for such purpose set such value as the Liquidator deems fair upon any property to be divided as aforesaid and may determine how such division shall be carried out as between the members.

77. The liquidator may, with the like sanction vest the whole or any part of such assets in trustees upon such trust for the benefit of the members as the liquidator, with the like sanction shall think fit.

INTERPRETATION

78. In these Regulation unless the context otherwise requires,

(a) “Act” means the Companies Act, (Act 992), or any statutory modification or re-enactment thereof;

(b) Words or expression shall have the same meaning as in the Act;

(c) References to section of the Act shall mean such section as modified or re-enacted time to time.

“I/We the undersigned am/are desirous of forming an incorporated body in pursuance of these Regulation and I/We agree to take the number of share in the company to set opposite my/our name/s and pay therefore in cash the consideration stated”.

The Current top 20 Shareholders of the Company are:

Full Name	Total S h a r e s	Total A m o u n t	Shares P e r c e n t (%)	Address
Dordunoo Cletus Kwashi	6,000,000	300,000.00	6.08	Box LG 46, University of Ghana, Legon
Akua Aboabea Aboah	5,881,250	116,417.08	5.96	DTD 23, Regina Crescent Spintex, Regimanuel
Owusu Amoah Ammishaddai/Emma	5,014,880	145,080.99	5.09	P.O.Box M659, Ministries
Samuel Okyere Ayisi	4,036,615	84,665.53	4.09	140 Alcott Place Apartment 4b Bronx, NY 10475, USA
Samuel Larbi Darko	2,507,904	78,982.29	2.54	Box CT 262, Cantonments
Prof Benjamin Kwadjo Ahunu	1,875,000	35,733.86	1.90	College of Agric, Box LG 226, Legon
Samuel Dadzie	1,637,500	31,207.57	1.66	Box AC 607, Art Center, Accra

Edward Henaku Boohene	1,445,013	27,539.14	1.47	Box 2718, Accra
Ernestina Siebe Ayisi	1,426,439	33,373.55	1.45	Box 15675, Accra North
Kwabena Boadu Oku Afari	1,351,891	25,764.42	1.37	Ministry of Finance, Box M40, Accra
Cedars Investment Limited	1,285,500	24,499.14	1.30	Box LG 854, Legon
Cynthia Mullings-Akuffo	1,187,500	22,631.45	1.20	Grostedet 14ST TH2700 Bronshoj Denmark
Dr. Esther O. Sakyi Dawson	1,177,000	29,300.44	1.19	Dept. of Nutrition
Vivian Agbozo	1,173,750	26,082.43	1.19	Box AF 618, Adenta Estates
Esther Kwafo	1,125,000	21,440.32	1.14	Box 366, Obosomase
Kofi Anane-Kyeremeh	1,000,000	19,058.06	1.01	M 733 2 , Madina
Joshua R. Ayisi	993,750	18,938.95	1.01	Box AN 15675, Accra
Regina Obu	962,500	18,343.38	0.98	C/O Methodist Church, Larteh
Irene Anang-Tetteh	800,904	19,069.53	0.81	Box AF 618, Adenta Estates
Maj. Melody Millicent Danquah	670,000	12,768.90	0.68	Box 3859, Accra
Total	41,552,396	1,090,897.03		

NAME ADDRESS SIGNATURE

KWAME GYEKE-AMOAKO BAATSONA-ACCRA

DR. ERNEST OBUOBISA DARKO ACCRA

DR. WILLIAM ADJEI TWUMASI MAMFE-AKUAPEM

MR DANIEL ASARE MINTAH AMANOKROM

MR SAMUEL DAKO ACCRA

WITNESSED BY:

BERTHA AHENKAN BOATENG

COMPANY SECRETARY

SIGNATURE: